



CHAPTER xxii

An Act to provide for the removal of certain restrictions attaching to Cannon Hill Park in the city of Birmingham, and to confer powers upon the lord mayor, aldermen and citizens of that city with regard thereto, and for other purposes. [19th July, 1961.]

WHEREAS—

(1) The city of Birmingham (hereinafter referred to as “the city”) is a county borough under the management and local government of the lord mayor, aldermen and citizens of the city (hereinafter referred to as “the Corporation”):

(2) By an Indenture dated the eighteenth day of April eighteen hundred and seventy-three and made between Louisa Anne Ryland of the one part and the Corporation of the other part, certain lands were conveyed to the Corporation upon the trusts and for the purposes in and by the Birmingham Parks Act, 1854, expressed and declared of and concerning the lands which the council of the city under the powers of that Act accept or purchase and subject to certain conditions and regulations expressed and contained in that Indenture:

(3) The Birmingham Parks Act, 1854, was repealed by the Birmingham Corporation (Consolidation) Act, 1883, which re-enacted certain provisions thereof:

(4) By an Indenture dated the twenty-eighth day of November eighteen hundred and ninety-eight and made between the Right Honourable Augustus Cholmondeley Baron Calthorpe and the Honourable Walter Gough Calthorpe of the first part, the Corporation of the second part and Edward Orford Smith of the third part, a certain piece of land was conveyed to the Corporation upon trust that it should be held by the Corporation and their successors as public ground for the purposes of the Recreation Grounds Act, 1859, and subject to the provisions relating to parks contained in the Birmingham Corporation (Consolidation) Act, 1883, and subject also to the covenants and conditions contained in that Indenture:

(5) By an Indenture dated the eighth day of July nineteen hundred and twenty-five and made between the Honourable Rachel Anstruther-Gough-Calthorpe of the first part, Ralph Tichborne Hinckes and Cresswell Augustus Cresswell of the second part and the Corporation of the third part, certain lands were, subject as therein provided, conveyed to the Corporation and by that Indenture the Corporation entered into certain covenants:

(6) With the exception of land utilised for the widening of Pershore Road the said lands, together with other lands conveyed from time to time to the Corporation, now form Cannon Hill Park in the city:

(7) It is expedient to provide for the removal of certain of the restrictions and conditions contained in the said Indentures and to empower the Corporation to grant a lease or leases of a part or parts of Cannon Hill Park in manner provided by this Act and to provide for the remainder of Cannon Hill Park to be held by the Corporation as a park provided by them under Part IV of the Birmingham Corporation (Consolidation) Act, 1883:

(8) It is expedient that the other provisions contained in this Act be enacted:

(9) The purposes of this Act cannot be effected without the authority of Parliament:

(10) In relation to the promotion of the Bill for this Act the requirements of Part XIII of the Local Government Act, 1933, have been observed:

(11) In the month of November nineteen hundred and sixty a map showing Cannon Hill Park was deposited with the town clerk of the city and is in this Act referred to as "the deposited map" and copies of that map were in the same month

deposited in the office of the Clerk of the Parliaments and in the Private Bill Office of the House of Commons respectively:

May it therefore please Your Majesty that it may be enacted, and be it enacted, by the Queen's most Excellent Majesty, by and with the advice and consent of the Lords Spiritual and Temporal, and Commons, in this present Parliament assembled, and by the authority of the same, as follows:—

1.—(1) This Act may be cited as the Birmingham Corporation Act, 1961. Short and collective titles.

(2) The Birmingham Corporation Acts, 1876 to 1959, and this Act may be cited jointly as the Birmingham Corporation Acts, 1876 to 1961.

2.—(1) In this Act unless the subject or context otherwise requires— Interpretation.

“ Cannon Hill Park ” means the park in the city known as Cannon Hill Park and shown on the deposited map, being the area within the inner edge of the red line on that map;

“ the city ” means the city of Birmingham;

“ the Corporation ” means the lord mayor, aldermen and citizens of the city;

“ the deposited map ” means the map referred to in the preamble to this Act;

“ the Indenture of 1873 ” means the Indenture dated the eighteenth day of April eighteen hundred and seventy-three and made between Louisa Anne Ryland of the one part and the Corporation of the other part;

“ the Indenture of 1898 ” means the Indenture dated the twenty-eighth day of November eighteen hundred and ninety-eight and made between the Right Honourable Augustus Cholmondeley Baron Calthorpe and the Honourable Walter Gough Calthorpe of the first part, the Corporation of the second part and Edward Orford Smith of the third part;

“ the Indenture of 1925 ” means the Indenture dated the eighth day of July nineteen hundred and twenty-five and made between the Honourable Rachel Anstruther-Gough-Calthorpe of the first part, Ralph Tichborne Hinckes and Cresswell Augustus Cresswell of the second part and the Corporation of the third part;

the Indentures ” means the Indenture of 1873, the Indenture of 1898 and the Indenture of 1925;

“restrictions” includes terms, conditions, regulations and covenants binding on the Corporation;

“the specified lands” means the part of Cannon Hill Park which is shown on the deposited map and thereon coloured pink.

(2) Except where the context otherwise requires, any reference in this Act to any enactment shall be construed as a reference to that enactment as applied, extended, amended or varied by or by virtue of any subsequent enactment including this Act.

Provisions
as to Cannon
Hill Park.

3. Notwithstanding anything contained in the Indentures—

(1) As from the passing of this Act Cannon Hill Park shall be freed and discharged from all trusts, uses and restrictions which attach thereto by virtue of the Indentures, except—

(a) the conditions and regulations contained in the Indenture of 1873 which prohibit the sale of intoxicating liquors and prohibit the use of boats, bands of music, athletic exercises or games in Cannon Hill Park on Sundays;

(b) the covenant contained in the Indenture of 1898 by the Corporation to maintain and renew the fence and trees at their own expense along the north-western boundary of the piece of land thereby conveyed; and

(c) the covenant contained in the Indenture of 1925 by the Corporation to maintain on the north-east boundary of the land thirdly thereby conveyed an unclimbable iron fence five feet high;

and, subject to the provisions of paragraphs (2) and (3) of this section, the Corporation shall hold Cannon Hill Park as a park provided or maintained by them under Part IV (Parks) of the Birmingham Corporation (Consolidation) Act, 1883:

(2) The Corporation may from time to time grant a lease or leases of the whole or any part or parts of the specified lands, together with any other part of Cannon Hill Park adjoining the specified lands but not exceeding two acres in extent, for such period and upon such terms and conditions (including the letting thereof at a nominal rent) as they may think fit to any body, whether incorporated or not, whose objects are in the opinion of the Corporation charitable and comprise or include the provision of an art and cultural centre:

- (3) During the subsistence of any lease granted under paragraph (2) of this section the land thereby demised shall not be held as a park and (in addition to being freed from trusts, uses and restrictions by virtue of paragraph (1) of this section) shall be freed and discharged from the conditions and regulations contained in the Indenture of 1873 which prohibit the use of boats, bands of music, athletic exercises or games on Sundays.
4. The following sections of the Public Health Act, 1936, shall have effect as if references therein to that Act included a reference to this Act:—

Application of provisions of Public Health Act, 1936.

Section 304 (Judges and justices not to be disqualified by liability to rates); and

Section 328 (Powers of Act to be cumulative).

5. The following provisions of the Birmingham Corporation (Consolidation) Act, 1883, so far as they are applicable in that behalf shall, with any necessary modifications, extend and apply to the exercise of the powers of this Act in the same manner as if those provisions were re-enacted in this Act (namely):—

Application of existing enactments.

Section 8 (Power to appoint committees); and

Section 9 (Proceedings of committees).

6. This Act shall be deemed to be an enactment passed before and in force at the passing of the Town and Country Planning Act, 1947, for the purposes of subsection (4) of section 13 and subsection (1) of section 118 of that Act.

Saving for town and country planning.

7. The costs, charges and expenses preliminary to and of and incidental to the preparing, applying for, obtaining and passing of this Act shall be paid by the Corporation.

Costs of Act.

Table of Statutes referred to in this Act

Short title	Session and chapter
Birmingham Parks Act, 1854	17 & 18 Vict. c. cxiii.
Recreation Grounds Act, 1859	22 Vict. c. 27.
Birmingham Corporation (Consolidation) Act, 1883	46 & 47 Vict. c. lxx.
Local Government Act, 1933	23 & 24 Geo. 5 c. 51.
Public Health Act, 1936	26 Geo. 5 & 1 Edw. 8 c. 49.
Town and Country Planning Act, 1947 ...	10 & 11 Geo. 6 c. 51.

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ARRANGEMENT OF SECTIONS

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5. Application of existing enactments.
6. Saving for town and country planning.
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